

dower (*b*), and in the case of copyhold to freebench (*c*); and until a late Act the trust estate was liable to forfeiture (*d*), and on the decease of the trustee, if there was no heir, it fell by escheat to the lord (*e*); but by 13 & 14 Vict. c. 60, ss. 15, 46, (substituted for 4 & 5 W. 4, c. 23,) the legal estate of trust property was protected from forfeiture and escheat (*f*). And by another Act (*g*), it was enacted that, "Upon the death of a bare * trustee, *intestate* as to any cor- [*222] poreal or incorporeal hereditament, of which such trustee was seised in fee simple, such hereditament should vest, like a chattel real, in the legal personal representative from time to time of such trustee." But the Act was not to apply to lands registered under the same Act.

(*b*) *Noel v. Jevon*, Freem. 43; *Nash v. Preston*, Cro. Car. 190.

(*c*) *Hinton v. Hinton*, 2 Ves. sen. 631, 638; *Bevant v. Pope*, Freem. 71; and see *Brown v. Raindle*, 3 Ves. 256.

(*d*) *Pawlett v. Attorney-General*, Hard. 466, *per* Lord Hale; *Geary v. Bearcroft*, Cart. 67, *per Cur.*; *King v. Mildmay*, 5 B. & Ad. 254.

(*e*) Jenk. 190, c. 92.

(*f*) See *infra*.

(*g*) 38 & 39 Vict. c. 87, s. 48 (repealing 37 & 38 Vict. c. 78, s. 5). In a recent case a discussion arose as to the meaning of the expression a *bare trustee*. V. C. Hall observed, "Where there is a trustee whose trust is to convey and the time has arrived for a conveyance by him, he is, I think, a bare trustee," and then adverted to Dart's "Vendors and Purchasers," in which it is laid down, that "a *bare trustee* would probably be held to mean a trustee to whose office no duties were originally attached, or who, although such duties were originally attached to his office, would on the requisition of his *cestuis que trust*, be compellable in equity to convey the estate to them or by their direction, and has been requested by them so to convey it," the V. C. approved of the statement, save only that the

words, "and has been requested by them so to convey it," should be left out, inasmuch as they were not an important or necessary ingredient. But it may well be doubted whether this is so. For if an estate be vested in trustees in trust to sell and divide the proceeds amongst a class, the trustees are bound to convey by the direction of the class if *sui juris*, but certainly are not bare trustees until the joint request to convey has countermanded the trust for sale. *Christie v. Ovington*, 1 Ch. D. 279. [However in a subsequent case M. R. withheld his approval of the above definition of a "bare trustee," and while expressly abstaining from deciding the point intimated an opinion that a "bare trustee," meant a trustee without any beneficial interest, whether he had active duties to perform or not. See *Morgan v. Swansea Urban Sanitary Authority*, 9 Ch. D. 582. But in a still later case V. C. Bacon held that trustees of real estate devised upon trust for sale, the sale of which had been ordered in an action to administer the testator's estate, were bare trustees, although they took beneficial interests in the proceeds of sale; *Re Docwra*, 29 Ch. D. 693.]